Plumtree Town (Mining and Mineral Panning) By-laws, 2025

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IT is hereby notified that the Minister responsible for Local Government has, in terms of section 229 of the Urban Councils Act [*Chapter 29:15*], approved the following by-laws:—

*Title*

1. These by-laws may be cited as the Plumtree Town (Mining and Mineral Panning) By-laws, 2025.

*Application*

2.These by-laws shall apply within the Plumtree Town area.



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*Interpretation*

3. In these by-laws—

"alluvial deposit" means—

(a) in relation to precious stones, any deposit, either non-coherent or consolidated, of any geological age, which has been formed by water or wind;

(b) in relation to any accumulation of sand, gravel or clay deposited by surface water containing valuable minerals;

"council" means Plumtree Town;

"exploration" means geological examination in search of minerals;

"licence" means a licence issued in terms of Part 1 which is valid and current;

"licensee" means any person who is the holder of licence;

"licensed premises" means premises in respect of which a licence is issued;

"elution" means a process of extracting one material from another;

"mine" includes any place excavation or working whereon, wherein or whereby any operation in connection with mining purposes is carried on;

"miner" the person actually carrying on the work of mining on any mining location, whether he or she is the holder or the lessee or assignee of the rights of such holder;

"mineral" means—

(a) any substance occurring natural in or on the earth which has been formed by or subjected to a geological process; and

(b) any substance declared to be a mineral in terms of Mines and Minerals Act [*Chapter 21:05*].

"mining" means any act of extracting minerals as defined by these by-laws;

"prospecting" means the first stage of the geological analysis of a territory in search of minerals;

"mineral panning" means the separation of minerals using water.

*Submission of prospecting, exploration and mining rights licences to Council*

4. (1) All holders of prospecting, exploration and mining rights operating in the Council area shall submit certified copies of their licences to Council.

(2) Any holder of a prospecting, exploration or mining rights operating in the Council area shall—

(a) submit a certified copy of the Environmental Impact Assessment Report, Environmental Management Plan or Environmental Impact Assessment Certificate issued by the Environmental Management Agency in terms of the Environmental Management Act [*Chapter 20:27*];

(b) carry out all relevant mine closure and environmental rehabilitation measures as prescribed by the Environmental Management Act [*Chapter 20:27*].

(3) All the provisions related to applications for mining rights, compensation for acquisition of land for mining purposes and payment of levies to local authorities by holders of mining rights as prescribed in the Mines and Minerals Act [*Chapter 21:05*] shall apply to the Council area with necessary changes.

(4) No person shall pan any mineral in the Council area, except in terms of a licence issued by the Ministry of Mines and Mining Development.

*Application for submission of environmental impact assessment plans*

5. (1) The developers of any projects in the Council area for which an environmental social impact assessment is required in terms of Ssection 97 and the First Schedule of the Environmental Management Act [*Chapter 20:27*] shall:—

(a) submit an application of his or her environmental social impact assessment for consideration by Council upon payment of a fee specified in the First Schedule;

(b) consult Council during the consultation process leading to the development of an environmental impact assessment;

(c) involve Council in organising public consultations meetings in the area regarding the proposed development project;

(d) submit to Council the name, contact details and other relevant particulars such as qualifications of any consultant hired or engaged by the project developer to carry out the environmental impact assessment on his or her behalf and proof of their registration with the Environmental Management Agency;

(e) submit to Council a certified copy of the Environmental Impact Assessment Report for the proposed project;

(f) submit to Council a certified copy of the Environmental Impact Assessment Certificate issued for the project by the Director-General of the Environmental Management Agency;

(g) submit to Council a certified copy of the annual Environmental Management Plan;

(h) submit to Council a certified copy of the siting of works plan.

(2) It is an offence for any miner in a Council area to start operations without submitting to Council a certified copy of the Environmental Impact Assessment Report, or a copy of the Environmental Impact Assessment certificate issued by the Director-General of the Environmental Management Agency or a certified copy of the annual Environmental Management Plan produced by the miner.

(3) Any person who fails to submit the documents required in terms of subsection (2) shall be guilty of an offence and liable to a fine specified in the Second Schedule.

(4) The miner shall submit to Council all relevant information related to quarterly environmental monitoring reports submitted to the Environmental Management Agency, in terms of Section 106 of the Environmental Management Act [*Chapter 20:27*], operating in the Council area.

(5) Council shall take measures to make environmental impact assessment reports submitted by miners available and open for public inspection at all reasonable times at the Council offices upon payment of a fee specified in the First Schedule:

Provided that no person shall use any information contained therein for personal benefit and this has to be done in compliance with Section 108 of the Environmental Management Act [*Chapter 20:27*].

*Environmental rehabilitation works on abandonment of project*

6. (1) Any person who undertakes any mining projects, resource extraction projects or any other projects for commercial exploitation of natural resources with the effect of causing environmental damage or environmental degradation or harm in the council area shall: —

(a) submit to Council a rehabilitation plan containing rehabilitation works that will be undertaken before abandonment or closure of the project; and

(b) rehabilitate the environment before abandonment or closure of the project.

(2) Council shall monitor the implementation of rehabilitation plans of projects with assistance from the Environmental Management Agency.

(3) Any person who fails to rehabilitate the environment after abandonment or closure of the project shall be guilty of an offence and liable to a fine specified in the Second Schedule.

*Environmental Reclamation Fund*

7. Council shall establish a fund known as the Environmental Reclamation Fund into which any person who undertakes any mining activity with the effect of causing environmental degradation shall contribute a fee specified in the First Schedule and obtain a reclamation permit.

*Environmental rehabilitation works to be carried out by Council*

8. Where a land owner, developer or occupier as the case may be, requests council to carry out environmental rehabilitation works on his or her land, or in the event that the owner fails to do so on his or her own within six months, council may undertake such environmental rehabilitation works as may be necessary to rehabilitate the environment and recover the costs associated with such works from the land owner or occupier of the land.

*Corporate Social Responsibility*

9. A memorandum of agreement shall be mutually drawn between the miner and Council on what will be given to the community as corporate social responsibility.

*Inspection of mining activities in a council area*

10. (1) The officer of a council, the mining commissioner, the inspector of mines, police officer, any agent of the Reserve Bank, any officer of the Natural Resources Board or of the department of National Park and Wild Life of such grade as may be designated by the Secretary for Environment and Tourism or any person authorised by the mining commissioner may do all or any of the following—

(a) ascertain whether those regulations are being complied with by inspecting any mining operations;

(b) ensure that persons operating upon any stretch or stretches of any public stream hold a permit issued in terms of this by-law;

(c) make inquiries in respect of the state or condition of any mining operations and of all matters or things connected to the well-being or safety of persons employed or in any operations contiguous, thereto;

and may, where it appears that this by-law is not being complied with —

(i) give directions to the permit holder as to the proper working of the mineral deposits; or

(ii) terminate the operations concerned immediately and obtain the cancellation of the permit by the council.

(d) all mining claims under operation shall be fenced to avoid encroachments by animals.

(e) all mining shafts shall be timbered to avoid internal collapse and loss of life.

(f) movement of ores using council roads shall be undertaken after obtaining a permit from Council.

(g) mining activities shall be done in such a way that does not pollute the environment.

(2) The mining commissioner, the inspector of mines, a police officer or any duly authorised person or agent of the Reserve Bank —

(a) shall have access to and inspect any of the records required to be maintained by a council and the miner; or

(b) inspect the activities of every council as a holder of a special grant;

and the mining commissioner, the inspector of mines, the police officer or any duly authorized person or agent of the Reserve Bank shall report any irregularities or breaches of these regulations to the Secretary who may take such action as he considers appropriate which may include the cancellation of the special grant in whole or in part.

*Working of alluvial gold deposits*

11.(1) Alluvial gold operations shall —

(a) be confined to the bed of a public stream; and pay a fee as prescribed by council;

(b) subject to subsection (2), be conducted at least three metres from the lowest point of the naturally defined banks of a public stream and without any disturbance to its banks.

(2) Any person who undertakes works on a public stream or river shall not be allowed to trade sand without council approval.

(3) The inspector of mines may, if he or she considers it necessary in the interests of safety, increase the distance referred to in paragraph (b) of subsection (1).

*Prohibition against undercutting of workings*

12.(1) In mining any alluvial gold deposit, no person shall —

(a) permit any working to have a vertical depth of more than one comma five metres unless such working is terraced or sloped at an angle sufficient to ensure the safety or persons or is adequately supported;

(b) undercut or permit the undercutting of any workings; or

(c) use any mechanical equipment to dig within the bed of a public stream unless a permit issued by an inspector of mines in consultation with the provincial natural resources officer and the council, on such terms and conditions as may be specified in the permit, otherwise authorises.

*Backfilling of mined area*

13. Any area within the bed of a public stream which has been mined shall be rehabilitated by backfilling as mining operations progress.

*Elution plant*

14. Any person who wishes to establish an elution plant is required to obtain a permit after paying a fee specified in the First Schedule.

*Payment to local authorities*

15. Every miner who has been authorised to conduct mining activities in the Council area shall pay to Council royalties, levies, licence and any other fees approved by Council.

*Offences and penalties*

16. Any person who contravenes any provision of these by-laws shall be liable to a fine specified in the Second Schedule.

FIRST SCHEDULE
FEES

| Section | Description | Fee $ |
|---|---|---|
| 4 and 15 | Council land development levies | |
| | Artisanal mining (class A) | 0,00 |
| | Class B | 0,00 |
| | Medium scale gold mining | 0,00 |
| | Large scale gold mining | 0,00 |
| | Milling permit-bow mill | 0,00 |
| | Milling permit hammer mill | 0,00 |
| | Mining alluvial | 0,00 |
| | Mining base minerals | 0,00 |
| | Gold claims non producing per claim | 0,00 |
| | Base mineral non producing per block | 0,00 |
| | Cyanidation companies | 0,00 |
| | Individuals | 0,00 |
| 5 | EIA Consultation fee | 0,00 |
| | EIA reports inspection | 0,00 |
| 6 | Environmental rehabilitation levy | 0,00 |
| | Artisanal mining: Class A | 0,00 |
| | Class B | 0,00 |
| | Medium scale gold mining | 0,00 |
| | Large scale gold mining | 0,00 |
| | Milling permit-bow mill | 0,00 |
| | Milling permit hammer mill | 0,00 |
| | Mining alluvial | 0,00 |
| | Mining base minerals | 0,00 |
| | Gold claims non-producing per claim | 0,00 |
| | Base mineral non-producing per block | 0,00 |
| 7 | Cyanidation companies | 0,00 |
| | Individuals | |
| | Rehabilitation fund levy | 0,00 |

SECOND SCHEDULE:
PENALTIES

| *Section* | *Description of Offence* | *Amount* (USD) |
|---|---|---|
| 4 | Panning any mineral in the Council area without a permit issued by Council | 0,00 |
| 4 | Failure by a holder of prospecting, exploration and mining rights operating in the Council area to submit copies of their licences to Council | 0,00 |

| *Section* | *Description of Offence* | *Amount* (USD) |
|---|---|---|
| 4 | Failure to submit a copy of the Environmental Impact Assessment Report, Environmental Management Plan, or Environmental Impact Assessment Certificate issued by the Environmental Management Agency to Council | 0,00 per inspection |
| 6 | Failure by owner to reclaim all disused mines and carry out environmental rehabilitation measures | 0,00 |
| 5 | Starting of operations by a project developer without submitting to Council a copy of the Environmental Impact Assessment Report, or a copy of the Environmental Impact Assessment certificate issued by the Director-General of the Environmental Management Agency or a copy of the annual Environmental Management Plan produced by the project developer. | 0,00 |
| 6 | Failure by a project developer to rehabilitate the environment after abandonment or closure of the project | 0,00 |

**NB**: The penalties are payable in local currency at the prevailing interbank rate and shall exclude VAT.